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IN THE SECOND DISTRICT COURT OF APPEAL
STATE OF FLORIDA

ARTHUR CZYSZCZON, in his official capacity as Treasure Island City Commissioner,
Appellant,

v. **CASE NO.: 2D-2026-0389**

CITY OF TREASURE ISLAND, et al.,
Appellees.

APPELLEE RICHARD MATTHEW'S MOTION TO DISMISS APPEAL

Appellee, Richard Matthew ("Matthew"), pursuant to Florida Rule of Appellate Procedure 9.300, moves to dismiss this appeal as to him and states:

I. INTRODUCTION.

This appeal challenges the circuit court's denial of declaratory and injunctive relief concerning a municipal recall process governed by Fla. Stat. §100.361. However, as to Appellee Matthew, the appeal presents no justiciable controversy and seeks relief that could not

legally be granted by Matthew, because he is a private citizen with no control over government recall verification procedure or municipal election scheduling. Where an appellate court cannot grant effective relief against a party, dismissal is required as a matter of law.

II. THE APPEAL PRESENTS NO JUSTICIABLE CONTROVERSY AS TO MATTHEW.

An appellate court may not decide abstract questions or issue advisory opinions. *Sarasota-Fruitville Drainage Dist. v. Certain Lands, etc.,* 80 So. 2d 335 (1955). Where no effective relief can be granted against a party, dismissal is appropriate. The legal ground for dismissal in this case is that the appeal presents no justiciable controversy as to Matthew because no effective or redressable relief can be granted against him, a private citizen with no statutory authority over the challenged recall process.

The order under review denied declaratory and injunctive relief concerning administration of the municipal recall process under Fla. Stat. §100.361. The statutory duties implicated by Appellant's claims are assigned to the Municipal Clerk and the Supervisor of Elections, not to private citizens who support the recall.

Matthew is a private citizen in Treasure Island who supports the recall of Commissioner Czyszczon. Matthew has no statutory authority to certify recall petitions, administer elections, verify signatures, schedule elections, or control recall procedures. Even if this Court were to reverse the order under review, any relief would necessarily run, if at all, against governmental officials, not Matthew.

Because no effective relief can be granted against Matthew, the appeal presents no live controversy as to him and should be dismissed.

III. APPELLANT LACKS REDRESSABLE INJURY AS TO MATTHEW.

Standing requires an injury that is fairly traceable to the defendant and redressable by the requested relief. *DeSantis v. Fla. Educ. Ass'n,* 306 So. 3d 1202 (2020). Appellant's arguments concern statutory compliance in the recall process, not any legally operative act by Matthew.

Enjoining Matthew would not halt petition verification, certification, or election scheduling. Those statutory functions lie exclusively with governmental officials. Accordingly, even assuming

Appellant's legal arguments were correct, the requested relief would not operate against Matthew.

Because the appeal cannot provide redress against Matthew, dismissal is required.

IV. THE CIRCUIT COURT'S ANTI-SLAPP FINDING FURTHER CONFIRMS THE ABSENCE OF A COGNIZABLE CLAIM AS TO MATTHEW.

During a February 24, 2026 hearing on Defendant Richard Matthew's Motion for Attorney Fees, the circuit court determined that the underlying action violated Fla. Stat. §768.295 (Florida's Anti-SLAPP ("**S**trategic **L**awsuit **A**gainst **P**ublic **P**articipation") law) because it arose from Matthew's protected political participation in a public issue. That conclusion determines that the claims against Matthew do not arise from neutral statutory enforcement authority, but from his protected civic advocacy.

Where an appeal seeks to prolong litigation against a private citizen who lacks statutory authority over the challenged governmental process, dismissal is appropriate.

V. REQUEST FOR RELIEF

Richard Matthew, through his counsel, respectfully requests that this Court dismiss this appeal as to him and grant such further relief as is proper.

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing has been furnished to the counsel of record via the Florida Courts E-Filing Portal on February 25, 2026.

CERTIFICATE OF COMPLIANCE

I hereby I hereby certify that this motion was prepared using Bookman Old Style 14-point font and that it complies with the font, spacing, and other requirements of Florida Rule of Appellate Procedure 9.045.

Respectfully submitted,

Elizabeth Murray
7901 4th Street North, Suite 300
St. Petersburg, Florida 33702
Tel: 317-366-4540
Email: elizabeth@icecoldlegal.com

/s/ Elizabeth Murray
Elizabeth Murray
Fla. Bar No.: 1070494
Counsel for Richard Matthew